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County: los-angeles

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Case Number: 23STCV23567 Hearing Date: June 25, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

KEVIN LAUGHLIN,

Plaintiff,

v.

LIBERTY MUTUAL INSURANCE COPMANY,

Defendant.

Case No: 23STCV23567

Hearing Date: June 25, 2026

Calendar Number: 3

Defendant Ohio Casualty Insurance Company has filed two separate motions. In its "Motion for Issue and Evidentiary Sanctions or, in the Alternative, to Compel Plaintiff Kevin Laughlin's Compliance with Court Order," Defendant seeks an

order imposing issue or evidentiary sanctions against Plaintiff Kevin Laughlin, arguing that the plaintiff failed to comply with the Court's order compelling further responses to form interrogatories. As an alternative to issue and evidentiary sanctions, the defendant requests an order compelling plaintiff to serve further responses to interrogatories. The defendant also asks for an order imposing monetary sanctions against the plaintiff and his counsel of record. Defendant separately moves for an order compelling plaintiff's further response to Special Interrogatories (Set Two) and imposing monetary sanctions against plaintiff and his counsel of record.

The Motion for Issue and Evidentiary Sanctions or, in the Alternative, to Compel Plaintiff Kevin Laughlin's Compliance with Court Order is DENIED IN PART and GRANTED IN PART as follows.

The request for issue and evidentiary sanctions is DENIED.

The request for an order compelling further responses to Form Interrogatories (Set One), No. 17.1, subpart (d) is GRANTED only as to plaintiff's denials of Requests for Admission, Set One, Nos. 25 and 28. Plaintiff is ordered to serve further responses to that discovery within 30 days of this ruling.

The request for monetary sanctions is GRANTED in the amount of \$3,000 against Plaintiff. Plaintiff is ordered to pay those sanctions to the defendant within 30 days of this ruling.

Defendant's Motion to Compel Further Responses to Special Interrogatories, Set Two, is DENIED in its entirety.

Background

This case concerns an insurance dispute.

On January 9, 2016, the Ohio Casualty Insurance Company and Ohio Security Insurance Company (collectively, "Ohio Insurers") issued a commercial general liability insurance policy to

Sapphire Bakery Company, LLC ("Sapphire"). Sapphire allegedly added Plaintiff Kevin Laughlin ("Laughlin" or "Plaintiff") and his company Eagle Mist Corporation d/b/a Osagai International ("Eagle Mist") as additional insureds under the insurance policy. Sapphire provided a certificate of liability insurance to Laughlin and Eagle Mist.

In August 2016, litigation commenced against Eagle Mist, Sapphire, and other entities involved in Laughlin's protein bar manufacturing. Laughlin contacted the Ohio Insurers to tender the defense and confirm coverage under the insurance policy. The Ohio Insurers paid all of Laughlin's legal bills from 2016 through 2019.

On November 5, 2019, the Ohio Insurers filed suit in federal court ("Federal Action") seeking declaratory relief absolving them of any continuing duty to defend Laughlin in the litigation. Laughlin raised counterclaims for bad faith and declaratory relief. The federal court granted summary judgment in the Ohio Insurers' favor on the declaratory relief claims and on Laughlin's and Eagle Mist's bad faith claim. (Ohio Casualty Insurance Company v. Eagle Mist Corporation (E.D. Mo., Dec. 22, 2021, No. 4:19-CV-2974-MTS) 2021 WL 6062520; Ohio Casualty Insurance Company v. Eagle Mist Corporation (E.D. Mo., Oct. 4, 2021, No. 4:19-CV-2974 MTS) 2021 WL 4523146.) As to the Ohio Insurers' unjust enrichment claim, the federal court found that Laughlin reasonably, but incorrectly, believed that Laughlin and Eagle Mist were additional insureds under the insurance policy. (Ohio Casualty Insurance Company v. Eagle Mist Corporation (E.D. Mo., Dec. 16, 2022, No. 4:19-CV-2974-MTS) 2022 WL 17735530, at *5.)

On September 28, 2023, Plaintiff brought this action against Defendant Liberty Mutual Insurance Company, which has since been dismissed from this case, leaving the Ohio Insurers as defendants.

On September 6, 2024, Plaintiff filed the operative Third Amended Complaint ("TAC"), asserting causes of action for: (1) fraud – concealment; (2) unfair competition; (3) intentional infliction of emotional distress; (4) negligence; and (5) promissory estoppel. The Court subsequently overruled the Ohio Insurers' demurrer to the first, second, and fifth causes of action, and sustained without leave to amend their demurrer to the third and fourth causes of action.

On November 25, 2025, Ohio

Casualty Insurance Company (“Defendant”) filed a motion to compel Plaintiff’s further responses to Form Interrogatories, Set One.

On January 29, 2026, the Court granted in part and denied in part the motion (“January 29 Order”). The Court ordered Plaintiff to serve further responses to the form interrogatories but denied Defendant’s request for sanctions.

On April 14, 2026, Defendant filed the instant “Motion for Issue and Evidentiary Sanctions or, in the Alternative, to Compel Plaintiff Kevin Laughlin’s Compliance with Court Order,” arguing that Plaintiff has failed to comply with the January 29 Order.

On April 21, 2026, Defendant filed the instant motion to compel Plaintiff to serve further responses to Defendant’s Special Interrogatories, Set Two.

On June 12, 2026, Plaintiff filed his oppositions to the motions.

On July 17, 2026, Defendant filed its replies.

Jury trial is set for November 16, 2026.

Legal Standard

“Any party may obtain discovery . . . by propounding to any other party to the action written interrogatories to be answered under oath.”² (Code Civ. Proc., § 2030.010, subd. (a).) “An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based.” (Id. at subd. (b).) “The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following: [¶] (1) An answer containing the information sought to be discovered. [¶] (2) An exercise of the party’s option to produce writings. [¶] (3) An objection to the particular interrogatory.” (Code Civ. Proc., § 2030.210, subd. (a).)

“On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“If a party then fails to obey an order compelling further response to interrogatories, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).” (Code Civ. Proc., § 2030.300, subd. (d).)

“To the extent authorized by the chapter governing any particular discovery method or any other provision of this title [e.g., the above statutes], the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:

(a) The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.

(b) The court may impose an issue sanction ordering that designated facts shall be taken as established in the action in accordance with the claim of the party adversely affected by the misuse of the discovery process. The court may also impose an issue sanction by an order prohibiting any party engaging in the misuse of the discovery process from supporting or opposing designated claims or defenses.

(c) The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters in evidence."

(Code Civ. Proc., § 2023.030; see id. at § 2023.010, subd. (b) ["Misuses of the discovery process include, but are not limited to ..., "[d]isobeying a court order to provide discovery"].)

Discussion

Requests for Judicial Notice

In support of its two motions, Defendant has filed requests for judicial notice of various court records in the Federal Action. (Request for Judicial Notice, filed April 14, 2026, pp. 2:25-3:10; Request for Judicial Notice, filed April 21, 2026, pp. 2:27-3:16.)

The requests are granted. (Evid. Code, § 452, subd. (d) [allowing courts to take judicial notice of any court record in the United States].)

Motion for Sanctions

Defendant moves for sanctions against Plaintiff, arguing that the latter has failed to comply with the Court's January 9 Order. According to defense counsel, the Court gave Plaintiff 21 days from January 29, 2026, to serve further responses to Defendant's Form

Interrogatories, Set One (“FROGs”). (Declaration of Hayk Ghalumyan, filed in support of (“ISO”) Sanctions Motion, ¶ 8.) On the date of the deadline, February 19, 2026, Plaintiff served amended responses that Defendant found deficient. (Id. ¶¶ 9, 10.) After further meet and confer, Plaintiff served another set of amended responses to the FROGs. (Id. ¶¶ 10, 11; Exh. 6 – a copy of the Second Amended Responses.) The parties met and conferred again regarding Defendant’s issues with Plaintiff’s Second Amended Responses, but Plaintiff refused to serve further amended responses. (Id. ¶ 12.)

Defendant argues that Plaintiff’s Second Amended Responses to the FROGs remain evasive, incomplete, and warrant sanctions.

In opposition, Plaintiff argues that the motion “seeks a merits ruling masquerading as a discovery sanction –yet another attempt by Defendant to reframe disputed factual issues as purported discovery deficiencies.” (Opposition to Sanctions Motions, p. 4:3-5.)

By way of background, Defendant served Plaintiff with Requests for Admission, Set One (the “RFAs”) asking Plaintiff to admit to several facts.

Plaintiff denied several RFAs. (See Declaration of Hayk Ghalumyan, filed November 25, 2025 ISO Defendant’s Motion to Compel Further Responses to the FROGs, ¶ 5; Exh. 3 – a copy of Plaintiff’s responses to the RFAs.)

Given those denials, Defendant asked Plaintiff the following in FROG No. 17.1:

“Is your response to each request for admission served with these interrogatories an unqualified admission? If not, for each response that is not an unqualified admission:

(a) state the number of the request;

(b) state all facts upon which you base your response;

(c) state the names, ADDRESSES, and telephone

numbers of all PERSONS who have knowledge of those facts; and

(d) identify all DOCUMENTS and other tangible things

that support your response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing.

(Separate Statement ISO Defendant's Motion to Compel Further Responses to Form Interrogatories, Set One, filed November 25, 2025 ISO Defendant's Motion to Compel Further Responses to the FROGS, p. 2:2-11.)

In its motion to compel

further responses to the FROGS, Defendant argued that Plaintiff's responses to the above interrogatory were insufficient as to his denials of RFA Nos. 25, 28, 29, 31, 32, and 33. The Court agreed with Defendant and, in the January 29 Order, ordered Plaintiff to serve further responses to the interrogatory within 21 days.

Defendant now argues

that Plaintiff's Second Amended Responses to FROG No. 17.1 are still deficient as to RFA Nos. 25, 28, 29, 31, 32, and 33.

The Court rules on Defendant's sanctions motion as follows.

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RFA No. 25: "Please admit that YOUR mistaken belief that YOU were an insured under the POLICY was not based on any specific oral or written representation made by DEFENDANTS."

For that RFA, Defendant only challenges Plaintiff's responses to FROG 17.1 subparts (b) and (d).

As to subpart (b), Defendant

argues: "Form Interrogatory No. 17.1(b) asks Plaintiff to state all facts on which he based his responses. Plaintiff's response completely avoids any discussion on whether Defendants have ever made any oral or written representation that Plaintiff was an insured under the Policy. The only relevant portion of Plaintiff's response appears to be the statement that 'Defendants' agent, Martin Gallaher Insurance Group, agreed in writing to add Defendants as additional insureds.'" (Separate Statement ISO Sanctions Motion, p. 5:14-18.)

Plaintiff's response to subpart

(b) was sufficient. The RFA assumes that Plaintiff's belief was mistaken and then asks Plaintiff to admit that that belief is not based on any specific oral or written representation. However, in response to FROG No. 17(b), Plaintiff responded that he does not admit that his belief was "mistaken." Therefore, Plaintiff was not required to provide any more details.

As to subpart (d), Defendant

argues: "[The subpart] asks Plaintiff to identify all documents that support his response, and state the name, address, and telephone number of the person who has each document. Given Plaintiff's statement that 'Defendants' agent, Martin Gallaher Insurance Group, agreed in writing to add Defendants as additional insureds,' Plaintiff must identify that document in response to Form Interrogatory No. 17.1(d). Plaintiff refused to do so and responded that '[a]fter diligent search and reasonable inquiry, Plaintiff has produced and identified all responsive documents in his possession, custody, and control and has no further documents to produce or identify.' Plaintiff's refusal to identify (and produce) this alleged document renders his responses evasive." (Separate Statement ISO Sanctions Motion, p. 5:19-27.)

The Court finds

Plaintiff's response to subpart(d) is insufficient. To the extent that Plaintiff has documents that support his denial of RFA 25, FROG 17.1(d) requires Plaintiff to "identify all DOCUMENTS and other tangible things that support [his] response and state the name, ADDRESS, and telephone number of the PERSON who has each DOCUMENT or thing." It is insufficient for Plaintiff to merely claim that he has produced the documents.

Sanctions are warranted

as to Plaintiff's response to FROG 17.1, subpart(d) (RFA 25). The Court will determine the appropriate sanctions later in this ruling.

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RFA 28: "Please admit that YOUR mistaken belief that

YOUR CLAIM was covered under the POLICY was not based on any specific oral or written representation made by DEFENDANTS."

Contrary

to Defendant's arguments, the Court finds that Plaintiff's response to FROG 17.1, subpart (b), as to RFA 28 was sufficient. Plaintiff denied that he had a

mistaken belief and explained his reasons for that denial.

The Court finds Plaintiff's response to subpart(d) of FROG 17.1 as to RFA 28 is insufficient for the same reason the Court has found the same as to RFA 25 above. To the extent that Plaintiff has documents that support his denial of RFA 28, Plaintiff must comply with subpart (d) of 17.1 instead of merely claiming to have produced all responsive documents.

Sanctions are warranted for Plaintiff's response to FROG 17.1, subpart (d) (RFA 28).

RFA 29: "Please admit that DEFENDANTS did not make any oral statements to YOUR promising to continue to provide defense to YOUR in the UNDERLYING ACTION."

The Court finds that Plaintiff's response to all subparts of FROG 17.1 as to RFA 29 was sufficient. The Court further agrees with Plaintiff that Defendant appears to want to turn this discovery motion into an evidentiary motion on the merits of the action. (See Separate Statement ISO Sanctions Motion, p. 13:24-26 ["Plaintiff's response to subpart (b) of FROG 17.1 as to RFA No. 29] is completely unresponsive because it does not address the core allegation that Defendants made an unambiguous promise to continue defending Plaintiff throughout the Underlying Action" (italics removed)).) However, as the appellate court states in one case, "[a] motion to compel discovery responses to interrogatories and requests for admission does not require a similar evaluation of evidence that relates directly to the merits of the case. Motions to compel responses (or for a protective order) instead involve only the resolution of issues related to the propriety and adequacy of the discovery requests and responses and the parties' conduct in the discovery process. (See, e.g., § 2030.300 [listing grounds for compelling further responses to interrogatories such as 'evasive or incomplete' answers and meritless or overly general objections]; § 2030.090 [listing grounds for a protective order, including 'unwarranted annoyance' and 'undue burden and expense'].)" (Swift v. Superior Court (2009) 172 Cal.App.4th 878, 884.) The fact that Defendant disagrees with Plaintiff's reasoning for his RFA denials is not grounds for finding Plaintiff's responses insufficient under discovery statutes.

Therefore, sanctions are not warranted for Plaintiff's response to FROG 17.1 (RFA 29).

RFA 31: "Please admit that YOUR mistaken belief that DEFENDANTS promised to continue to provide defenses to YOU in the UNDERLYING ACTION was based solely on their conduct in providing defense to YOU in the UNDERLYING ACTION under a reservation of rights."

RFA 32: "Please admit that YOU received no communication from DEFENDANTS explicitly promising to continue to provide defense to YOUR in the UNDERLYING ACTION."

No. 33: "Please admit that YOU are aware of no facts supporting YOUR contention that DEFENDANTS changed their coverage position, as alleged in paragraph 3 of YOUR Third Amended Complaint."

For RFAs

31 to 33, Defendant only challenges Plaintiff's response to subpart (b) of FROG No. 17.1. (Separate Statement ISO Sanctions Motion, pp. 17:23-18:3, 21:13-21, 24:23-25:26.) The Court finds Plaintiff's responses to FROG 17.1(b) for those RFAs were sufficient.

Sanctions

are not warranted for Plaintiff's response to FROG 17.1 (RFAs 31, 32, and 33).

To summarize, the Court finds that

Plaintiff only failed to serve proper responses to only subpart (d) of FROG 17.1 as to RFA Nos. 25 and 28. The rest of his responses were sufficient.

Defendant argues that,

as issue sanctions, the Court should enter an order establishing the following facts as true.

1. "Defendants Ohio Casualty and Ohio

Security Insurance Company ('Ohio Security') (collectively, 'Defendants') did not make any statement to Plaintiff promising to continue to provide defense to him in the lawsuit entitled Defense Nutrition, LLC v. Julian Bakery, Inc.,

et al., LASC, Case No. BC 629719 (the 'Underlying Action').

2.

"Plaintiff

received no communication from Defendants explicitly promising to continue to provide defense to him in the Underlying Action.

3.

"Plaintiff's

mistaken belief that he was an insured under the subject policy was not based on any specific oral or written representation made by Defendants.

4.

"Plaintiff's

mistaken belief that his claim was covered under the subject policy was not based on any specific oral or written representation made by Defendants.

5.

"Defendants

did not change their coverage position with respect to Plaintiff's subject insurance claim."

(Notice of

Sanctions Motion, p. 2:6-17.)

"Further, as part of its request for evidentiary sanctions, [Defendant] respectfully requests that Plaintiff be prohibited from introducing any purported evidence in contradiction to the above-listed facts." (Notice of Sanctions Motion, p. 2:18-20.)

"In the alternative, if the Court is disinclined to impose issue and/or evidentiary sanctions, [Defendant] respectfully requests that the Court issue an order compelling Plaintiff's immediate compliance with the Order, ensuring that full and complete discovery responses are provided without further delay." (Notice of Sanctions Motion, p. 2:21-24.)

"[D]iscovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination." (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992.) "If a lesser sanction fails

to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse.” (Ibid.) “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.’” [Citations.]” (Ibid.) In addition, “discovery sanctions may not be imposed as a punishment. ‘Courts have continued to uphold the principle ... that sanctions may not be imposed solely to punish the offending party.’ [Citations.]” (Kwan Software Engineering, Inc. v. Hennings (2020) 58 Cal.App.5th 57, 75.)

The Court’s January 29 Order denied Defendant’s request for monetary sanctions, which is the least severe sanction available under the Civil Discovery Act.

Therefore, the Court finds monetary sanctions and an order compelling Plaintiff to serve further responses to FROG 17.1, subpart (d), as to his denials of RFA Nos. 25 and 28, to be the most appropriate sanctions. Indeed, Defendant’s suggested issue and evidentiary sanctions would exceed what is required to protect its interests in the documents supporting Plaintiff’s denials of RFA Nos. 25 and 28.

Defendant requests monetary sanctions of \$4,125 for bringing this motion. That amount consists of 8 hours that defense counsel spent on the moving papers plus 3 hours counsel anticipated spending reviewing the opposition, drafting the reply, and attending the hearing, totaling 11 hours at counsel’s billing rate of \$375/hour. (Ghalumyan Decl. ISO Sanctions Motion, ¶ 13.)

In light of the Court’s ruling above, denying the motion in part, the Court finds the requested sanctions excessive and, instead, finds sanctions of \$3,000 reasonable. Those sanctions represent 8 hours of defense counsel’s time at the requested billing rate of \$375 per hour.

Therefore, the request for monetary sanctions is granted in the amount of \$3,000 against Plaintiff.

Motion to Compel Further Responses
to Special Interrogatories

As an initial matter, a motion to compel further responses to interrogatories shall be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040 and a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(1); Cal. Rules of Court, rule 3.1345(a)(2).)

The Court finds both requirements satisfied. Defense counsel testifies that the parties met and conferred regarding the special interrogatory at issue, and Plaintiff does not dispute that fact. (Declaration of Hayk Ghalumyan ISO Motion to Compel Further Responses to Special Interrogatories Set Two ("MTCF"), filed April 21, 2026, ¶¶ 8, 9.) Defendant has also filed a separate statement in support of the motion as required.

Only Plaintiff's response to Defendant's Special Interrogatory, Set Two ("SROG"), No. 85 is at issue in this motion. The interrogatory asked Plaintiff:

Please state with particularity each and every fact upon which YOU base YOUR contention that DEFENDANTS coordinated with SAPPHIRE'S counsel, Stacey Blank, to ensure that SAPPHIRE won at the trial in the UNDERLYING ACTION, and YOU lost. [¶] (As used in these interrogatories, the terms 'YOU' and 'YOUR' refer to Plaintiff Kevin Laughlin.) [¶] (As used in these interrogatories, the term 'DEFENDANTS' means Defendants Ohio Casualty Insurance Company and Ohio Security Insurance Company.) [¶] (As used in these interrogatories, the term 'SAPPHIRE' refers to Sapphire Bakery Company, LLC.) [¶] (As used in these interrogatories, the term 'UNDERLYING ACTION' refers to the lawsuit entitled Defense Nutrition, LLC v. Julian Bakery, Inc., et al., Los Angeles County Superior Court, Case No. BC 629719.)

(Separate Statement ISO MTCF, filed April 21, 2026, p. 2:2-14.) In response, Plaintiff served a response spanning approximately two pages. (Id. at pp. 2:15-5:5.)

Defendant argues that Plaintiff's response to SROG No. 85 is speculative, irrelevant, and fails to provide substantive facts or evidence. (Separate Statement ISO MTCF, pp. 5:25-6:26.)

The

Court finds Plaintiff's response sufficient. As stated in the Court's ruling on the motion for sanctions, a motion to compel discovery responses "involve[s] only the resolution of issues related to the propriety and adequacy of the discovery requests and responses and the parties' conduct in the discovery process," not the "merits of the case." (Swift v. Superior Court, supra, 172 Cal.App.4th at p. 884.) Therefore, Defendant's disagreement with Plaintiff's reasoning for his allegations is not relevant for this motion.

For those reasons, the motion to compel further response to SROG No. 85 is denied.